

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

FORMUKLEEN, INC., *Complainant*

v.

TOP SHIPPING SYSTEMS, CORP., *Respondent*.

DOCKET NO. 25-08

Served: April 13, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER GRANTING RESPONDENT’S MOTION FOR EXTENSION OF TIME

On April 1, 2026, I entered an Order Granting in Part and Denying in Part Respondent’s Motion to Dismiss, Granting in Part and Denying in Part Complainant’s Motion to Compel, and Requiring Respondent to Provide a Declaration (the “April 1 Order”). Relevant to the present Order, the April 1 Order required Respondent to provide a Declaration, as well as supplement responses to Requests for Production Nos. 4 and 7, and Interrogatory No. 1, no later than April 15, 2026.

On April 10, 2026, Respondent filed Respondent’s Motion for Extension of Time (“MTE”). In brief, Respondent notes that it retained new counsel, and seeks to have until April 29, 2026, to comply with the April 1 Order. Respondent states it sought concurrence from Complainant’s representative, but concurrence was denied. (*See generally* MTE).

On April 12, 2026, Complainant filed Complainant’s Opposition to Respondent’s Motion for Extension of Time (“MTE Opp.”). Complainant points out that Commission Rule 23(d) states that “Substitution of counsel or representative will not, by itself, be considered good cause for delaying a proceeding.” (46 C.F.R. § 502.23(d)). Complainant also argues that it has been seeking this discovery for many months, Respondent has already continuously failed to produce it, and there is no good reason for yet further delay. (*See generally* MTE Opp.).

Motions for enlargement of time may be granted upon a showing of good cause. (46 C.F.R. § 502.102(a)). Although motions for enlargement of time generally should be sought at least seven days before the filing deadline, a party may file a motion for enlargement of time fewer than seven days before the filing deadline “where reasonable grounds are found for the failure to meet this requirement.” (*Id.*).

I find that good cause exists for extending the compliance deadline in the April 1 Order from April 15, 2026, until April 29, 2026. It is reasonable to expect that new counsel will require a reasonable amount of time to become familiar with a file, and, in this case, perform necessary searches for documents and information.

I appreciate Complainant's point that the Commission's Rules provide that substitution of counsel itself is not grounds for delaying the proceeding. I also understand Complainant's frustration. Although Complainant asserts it would be prejudiced by the extension, the harms Complainant points to – *e.g.*, the case schedule being “derailed”; requiring Complainant to reorganize its own preparation – can be resolved through a corresponding extension of the discovery deadline if necessary.¹

In light of the above, Respondent's MTE is **GRANTED**. It is **ORDERED** that the compliance deadline of April 15, 2026, that is set forth in the April 1 Order is extended until **April 29, 2026**.

Richard C.
Ambrow Jr -S

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Richard C. Ambrow Jr -S
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Richard Ambrow
Administrative Law Judge

¹ I previously encouraged Complainant's representative to agree to short and reasonable extension requests. (*See* Order Denying Without Prejudice Motion for Extension of Time to Respond to Claimant's Motion for Summary Judgment; *see also* *Gaudet v. Howard L. Nations*, APC, CIVIL ACTION NO. 19-10356-WBV-JVM, 2021 WL 2446203, at *1 (E.D. La. Jun. 15, 2021) (“In doing so, the Court reminded counsel of their professional obligations toward each other and the Court, and admonished counsel about not extending professional courtesies to each other.”)). While I appreciate the desire of Complainant's representative to advocate zealously, it may have been more advantageous to Complainant if Complainant's representative agreed to allowing Respondent's MTE on the condition that Respondent's counsel agreed to a corresponding (or greater) extension of the discovery deadline (and subsequent deadlines).